# MASTER SERVICES AGREEMENT

THIS MASTER SERVICES AGREEMENT (the “Agreement”) is entered into as of March 1, 2026 (the “Effective Date”) by and between **NimbusWorks Inc.**, a Delaware corporation with its principal place of business at 4820 Harborview Drive, Suite 300, Austin, Texas 78701 (“Client”), and **Meridian Consulting Group LLC**, a New York limited liability company with its principal place of business at 118 Franklin Street, Floor 6, New York, New York 10013 (“Company”). Client and Company are each referred to herein as a “Party” and collectively as the “Parties.”

## 1. DEFINITIONS

**“Affiliate”** means, with respect to a Party, any entity that directly or indirectly controls, is controlled by, or is under common control with such Party, where “control” means ownership of more than fifty percent (50%) of the voting equity of such entity.

**“Confidential Information”** means any non-public business, technical, financial, or operational information disclosed by either Party, whether orally or in writing, that is designated as confidential or that a reasonable person would understand to be confidential given the nature of the information and the circumstances of disclosure.

**“Deliverables”** means all work product, documentation, software, reports, designs, and other materials that Company creates, develops, or delivers to Client pursuant to a Statement of Work.

**“Services”** means the software development, systems integration, data engineering, and technical advisory services described in one or more Statements of Work executed by the Parties under this Agreement.

**“Statement of Work” or “SOW”** means a written document, signed by both Parties, that describes specific Services to be performed, associated Deliverables, fees, and timelines, and that is incorporated into and governed by the terms of this Agreement.

**“Change Order”** means a written document, signed by both Parties, that modifies the scope, fees, Deliverables, or timeline of an existing Statement of Work.

**“Key Personnel”** means the individuals designated as such in a Statement of Work who are primarily responsible for the performance of the Services described therein.

**“Order Form”** means, collectively, a Statement of Work and any Change Orders executed with respect thereto.

## 2. SCOPE OF SERVICES

2.1 Company shall provide the Services described in each Statement of Work executed under this Agreement. Each Statement of Work shall specify the scope of Services, applicable Deliverables, fees, and delivery timeline, and shall be governed by the terms of this Agreement unless the Statement of Work expressly states otherwise.

2.2 Company shall perform the Services in a professional and workmanlike manner consistent with generally accepted industry standards applicable to the performance of similar services.

2.3 Client shall provide Company with reasonable access to Client’s personnel, systems, and information as reasonably necessary for Company to perform the Services.

2.4 **Change Orders.** Either Party may propose changes to a Statement of Work by submitting a proposed Change Order to the other Party. No proposed change shall become effective, and neither Party shall be obligated to perform in accordance with such change, until the corresponding Change Order has been signed by both Parties.

2.5 **Acceptance Testing.** Unless otherwise specified in a Statement of Work, Client shall have fifteen (15) business days following delivery of a Deliverable to review such Deliverable and notify Company in writing of any material non-conformance with the applicable specifications. If Client does not provide such notice within this period, the Deliverable shall be deemed accepted. If Client timely identifies a material non-conformance, Company shall use commercially reasonable efforts to correct such non-conformance and redeliver the Deliverable for a subsequent acceptance review.

2.6 **Key Personnel.** Company shall not remove or reassign any Key Personnel from an engagement without Client’s prior written consent, except in the event of such individual’s resignation, termination for cause, extended illness, or other circumstances beyond Company’s reasonable control, in which case Company shall promptly propose a replacement of comparable skill and experience, subject to Client’s reasonable approval.

## 3. TERM

3.1 This Agreement commences on the Effective Date and continues for an initial term of two (2) years (the “Initial Term”), and shall automatically renew for successive one (1) year periods (each, a “Renewal Term,” and together with the Initial Term, the “Term”) unless either Party provides the other with written notice of non-renewal at least sixty (60) days prior to the expiration of the then-current Term.

## 4. FEES AND PAYMENT TERMS

4.1 Client shall pay Company the fees set forth in each applicable Statement of Work in accordance with the invoicing schedule specified therein.

4.2 Company shall submit invoices to Client on a monthly basis, and each invoice shall be due and payable by Client within ninety (90) days of Client’s receipt of such invoice.

4.3 Notwithstanding Section 4.2, Company’s entitlement to payment on any invoice is expressly conditioned upon Client’s sole and absolute satisfaction with the corresponding Deliverables, and Client may withhold payment of all or any portion of an invoice, in Client’s sole discretion, if Client is not satisfied with the quality of the Deliverables to which such invoice relates.

4.4 All fees are exclusive of applicable taxes, and Client shall be responsible for all sales, use, value-added, or similar taxes arising from this Agreement, excluding taxes based on Company’s net income.

4.5 Company shall be reimbursed for reasonable, documented, pre-approved out-of-pocket travel and material expenses incurred in connection with the performance of the Services, provided that Company submits supporting documentation for any such expense in excess of One Hundred Dollars ($100).

4.6 Any undisputed amount not paid when due shall accrue interest at the lesser of one and one-half percent (1.5%) per month or the maximum rate permitted by applicable law, from the due date until paid in full.

## 5. INDEMNIFICATION

5.1 Company shall indemnify, defend, and hold harmless Client and its officers, directors, employees, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys’ fees) arising out of, relating to, or in connection with this Agreement or the Services, including without limitation any claims arising from or attributable to Client's own negligence, gross negligence, or willful misconduct.

5.2 Client shall have no obligation to indemnify, defend, or hold harmless Company under this Agreement.

## 6. LIMITATION OF LIABILITY

6.1 COMPANY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL BE UNLIMITED AND SHALL INCLUDE, WITHOUT LIMITATION, ALL DIRECT, INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, AND PUNITIVE DAMAGES, REGARDLESS OF THE THEORY OF LIABILITY AND EVEN IF COMPANY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

6.2 No limitation of liability set forth elsewhere in this Agreement or in any Statement of Work shall apply to, or in any way limit, Company's obligations under this Section 6.

## 7. INTELLECTUAL PROPERTY

7.1 **IP Ownership Assignment.** All Deliverables, inventions, discoveries, and other work product conceived, created, or developed by Company in the course of performing the Services, including any of Company's pre-existing tools, templates, methodologies, libraries, frameworks, and other reusable components incorporated therein, shall become the sole and exclusive property of Client immediately upon creation, and Company hereby irrevocably assigns to Client all right, title, and interest, including all intellectual property rights, in and to such Deliverables and work product.

7.2 **Joint IP Ownership.** Notwithstanding Section 7.1, any invention or work of authorship that is jointly conceived and developed through substantially equal contribution by personnel of both Company and Client ("Jointly Developed IP") shall be jointly owned by Company and Client, with each Party holding an undivided one-half interest therein, and each Party may make, use, license, and otherwise exploit the Jointly Developed IP without the consent of, and without any obligation to account to, the other Party.

7.3 **License Grant.** Company hereby grants to Client a worldwide, non-exclusive, royalty-free license to use Company's pre-existing intellectual property solely to the extent such intellectual property is incorporated into a Deliverable and solely as reasonably necessary for Client to use, support, and maintain such Deliverable.

7.4 **Non-Transferable License.** The license granted in Section 7.3 is personal to Client and may not be sublicensed, assigned, or otherwise transferred by Client to any third party without Company's prior written consent, except as expressly permitted under Section 7.5.

7.5 **Affiliate License Rights.** (a) *Affiliate License-Licensee.* Client's Affiliates may exercise the license rights granted under Section 7.3 as if such Affiliates were Client, without payment of any additional fee. (b) *Affiliate License-Licensor.* Any Affiliate of Company that independently develops intellectual property later incorporated into a Deliverable shall be deemed to have granted the license described in Section 7.3 with respect to such intellectual property, on the same terms set forth therein.

7.6 **Unlimited/All-You-Can-Eat License.** With respect to Company's proprietary software product known as the "Meridian Analytics Toolkit," Company grants Client an unlimited-use license permitting Client to install, deploy, and use the Meridian Analytics Toolkit across an unlimited number of users, servers, and business units within Client's enterprise, at no additional license fee beyond the fees specified in the applicable Statement of Work.

7.7 **Irrevocable or Perpetual License.** The licenses granted under Sections 7.3 and 7.6 are perpetual and irrevocable and shall survive the termination or expiration of this Agreement for any reason.

## 8. CONFIDENTIALITY

8.1 Each Party shall protect the other Party's Confidential Information using at least the same degree of care it uses to protect its own confidential information of similar nature, and in no event less than a reasonable degree of care, and shall not disclose such Confidential Information to any third party without the prior written consent of the disclosing Party, except to employees, contractors, and advisors with a need to know and who are bound by confidentiality obligations at least as protective as those set forth herein.

8.2 The confidentiality obligations under this Section 8 shall survive termination or expiration of this Agreement for a period of five (5) years, except with respect to Confidential Information constituting a trade secret under applicable law, for which such obligations shall survive for so long as such information remains a trade secret.

8.3 **Exclusions.** Confidential Information does not include information that: (a) is or becomes generally available to the public through no fault of the receiving Party; (b) was rightfully known to the receiving Party prior to disclosure by the disclosing Party; (c) is rightfully obtained by the receiving Party from a third party without restriction on disclosure; or (d) is independently developed by the receiving Party without use of or reference to the disclosing Party's Confidential Information.

8.4 The receiving Party may disclose Confidential Information to the extent required by applicable law or a valid order of a court or other governmental authority, provided that the receiving Party gives the disclosing Party prompt written notice of such requirement, to the extent legally permitted, so that the disclosing Party may seek a protective order or other appropriate remedy.

## 9. DATA PRIVACY AND SECURITY

9.1 Company shall comply with all applicable data protection and privacy laws in connection with its processing of any personal data on Client's behalf, and shall implement and maintain commercially reasonable administrative, technical, and physical safeguards designed to protect the security and confidentiality of such personal data.

9.2 Company shall process personal data received from Client solely for the purpose of performing the Services and in accordance with Client's written instructions, and shall not use, retain, or disclose such personal data for any other purpose.

9.3 Company shall notify Client without undue delay, and in no event later than seventy-two (72) hours, after becoming aware of any unauthorized access to, or disclosure or loss of, personal data processed on Client's behalf, and shall reasonably cooperate with Client's investigation and remediation of any such incident.

## 10. TERMINATION

10.1 Client may terminate this Agreement, in whole or in part, immediately and without prior notice, for any reason or no reason, and upon such termination Company shall not be entitled to any payment for Deliverables completed, work in progress, or Services performed prior to the effective date of such termination.

10.2 Company may terminate this Agreement only upon Client's material breach of this Agreement that remains uncured for a period of ninety (90) days following Company's written notice of such breach to Client.

10.3 Either Party may terminate this Agreement immediately upon written notice if the other Party becomes insolvent, makes an assignment for the benefit of creditors, or becomes the subject of a bankruptcy, receivership, or similar proceeding that is not dismissed within sixty (60) days.

10.4 Upon any termination or expiration of this Agreement, each Party shall promptly return or, at the disclosing Party's election, destroy all Confidential Information of the other Party in its possession, and Client shall pay Company for all undisputed fees for Services properly performed prior to the effective date of termination, except as otherwise provided in Section 10.1.

## 11. RESTRICTIVE COVENANTS AND COMMERCIAL TERMS

11.1 **Right of First Refusal.** If, during the Term, Client desires to engage a third party to provide services substantially similar in scope to the Services, Client shall first notify Company in writing and offer Company the opportunity to provide such services on substantially the same material terms, and Company shall have thirty (30) days from such notice to accept such offer before Client may engage a third party to provide such services.

11.2 **Change of Control.** If Company undergoes a Change of Control (defined as the acquisition, whether by merger, stock purchase, or otherwise, of more than fifty percent (50%) of Company's outstanding voting equity, or a sale of all or substantially all of Company's assets, by any entity that is a direct competitor of Client), Client may terminate this Agreement immediately upon written notice to Company, without penalty and without further obligation to Company other than payment for Services properly rendered prior to such termination.

11.3 **Anti-Assignment.** Neither Party may assign or transfer this Agreement, in whole or in part, without the prior written consent of the other Party, which consent shall not be unreasonably withheld; provided, however, that either Party may assign this Agreement without the other Party's consent to an Affiliate or in connection with a merger, acquisition, reorganization, or sale of substantially all of its assets.

11.4 **Revenue/Customer Sharing.** If Company introduces Client to a new business opportunity that results in a signed agreement between Client and a new customer identified by Company, Client shall pay Company a referral fee equal to five percent (5%) of the net revenue actually collected by Client from such customer during the first twelve (12) months following execution of the resulting agreement.

11.5 **Price Restrictions.** For so long as this Agreement remains in effect, Company shall not offer or provide services substantially similar to the Services to any other customer at fees lower than those charged to Client for a comparable scope and volume of work.

11.6 **Minimum Commitment.** Client shall engage Company for a minimum aggregate amount of Five Hundred Thousand Dollars ($500,000) in Service fees during each twelve (12) month period of the Term. If Client's actual aggregate spend during any such period is less than this minimum commitment, Client shall pay Company the shortfall amount within thirty (30) days following the end of the applicable twelve (12) month period.

11.7 **Volume Restriction.** Client’s use of any software or platform provided by Company under this Agreement, including the Meridian Analytics Toolkit referenced in Section 7.6, is limited to two hundred fifty (250) concurrent authorized users; any use in excess of this limit requires Company’s prior written consent and payment of additional fees as agreed by the Parties.

## 12. SUBCONTRACTING

12.1 Company shall not subcontract any portion of the Services to a third party without Client’s prior written consent, which shall not be unreasonably withheld or delayed. Company shall remain fully responsible for the performance of any subcontractor to the same extent as if such performance were carried out by Company directly.

12.2 Company shall ensure that any permitted subcontractor is bound by written obligations of confidentiality, data protection, and intellectual property assignment no less protective of Client than those set forth in this Agreement.

## 13. WARRANTIES AND DISCLAIMERS

13.1 Company represents and warrants that: (a) it has the right and authority to enter into this Agreement; (b) the Services will be performed in a professional and workmanlike manner consistent with generally accepted industry standards; and (c) the Deliverables will not, to Company’s knowledge, infringe the intellectual property rights of any third party.

13.2 EXCEPT AS EXPRESSLY SET FORTH IN SECTION 13.1, THE SERVICES AND DELIVERABLES ARE PROVIDED “AS IS” AND COMPANY DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

## 14. INSURANCE

14.1 Throughout the Term, Company shall maintain, at its own expense: (a) commercial general liability insurance with limits of not less than Two Million Dollars ($2,000,000) per occurrence; (b) professional liability (errors and omissions) insurance with limits of not less than Two Million Dollars ($2,000,000) per claim; and (c) workers’ compensation insurance as required by applicable law. Company shall provide Client with certificates of insurance evidencing such coverage upon Client’s written request.

## 15. RECORDS AND AUDIT RIGHTS

15.1 Company shall maintain accurate books and records relating to the Services and fees invoiced under this Agreement for a period of three (3) years following the calendar year to which such records relate. Upon no less than fifteen (15) business days' prior written notice, Client may, no more than once per calendar year and during Company's normal business hours, audit such records solely to verify Company's compliance with the fee and invoicing provisions of this Agreement.

## 16. COMPLIANCE WITH LAWS

16.1 Each Party shall comply with all applicable federal, state, local, and foreign laws, rules, and regulations in connection with its performance of, and exercise of its rights under, this Agreement, including without limitation applicable labor, employment, tax, and data protection laws.

## 17. NON-SOLICITATION OF EMPLOYEES

17.1 During the Term and for a period of twelve (12) months following termination or expiration of this Agreement, neither Party shall directly or indirectly solicit for employment any employee of the other Party who was involved in the performance of this Agreement, provided that this restriction shall not apply to general solicitations of employment not specifically directed at such employees, or to any employee who responds to such a general solicitation.

## 18. PUBLICITY

18.1 Neither Party shall use the other Party's name, trademarks, logos, or other indicia of identity in any advertising, publicity, press release, or other public disclosure without the prior written consent of the other Party, except that Company may identify Client as a customer in a general list of client references, subject to Client's prior written approval of the specific reference.

## 19. EXPORT COMPLIANCE

19.1 Each Party shall comply with all applicable export control and economic sanctions laws and regulations of the United States and other applicable jurisdictions in connection with this Agreement, and shall not export, re-export, or transfer any Deliverables or technical data in violation of such laws.

## 20. ANTI-CORRUPTION

20.1 Each Party represents that it has not offered, promised, or given, and covenants that it will not offer, promise, or give, directly or indirectly, anything of value to any government official or other person for the purpose of improperly obtaining or retaining business or securing any improper advantage in connection with this Agreement, in violation of the U.S. Foreign Corrupt Practices Act or any similar applicable anti-corruption law.

## 21. FORCE MAJEURE

21.1 Neither Party shall be liable for any failure or delay in performance under this Agreement to the extent such failure or delay is caused by circumstances beyond such Party’s reasonable control, including acts of God, natural disaster, war, terrorism, labor dispute, governmental action, or failure of third-party telecommunications or utility infrastructure, provided that the affected Party promptly notifies the other Party and uses commercially reasonable efforts to mitigate the effects of such event and to resume performance as soon as reasonably practicable.

21.2 If a Force Majeure event prevents a Party from performing its material obligations under this Agreement for a continuous period exceeding sixty (60) days, either Party may terminate this Agreement upon written notice to the other Party, without further liability except for amounts owed for Services properly performed prior to such termination.

## 22. GOVERNING LAW AND DISPUTE RESOLUTION

22.1 This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles.

22.2 Any dispute arising out of or relating to this Agreement that the Parties are unable to resolve through good-faith negotiation within thirty (30) days shall be resolved by binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules, before a single arbitrator, seated in Wilmington, Delaware, and judgment on the award rendered by the arbitrator may be entered in any court having jurisdiction thereof. Each Party shall bear its own costs and attorneys’ fees in connection with any such arbitration, except as the arbitrator may otherwise award.

## 23. NOTICES

23.1 All notices required or permitted under this Agreement shall be in writing and shall be deemed given upon personal delivery, upon confirmed transmission by email with a copy sent by nationally recognized overnight courier, or three (3) business days after being deposited in the mail, postage prepaid, addressed to the applicable Party at the address set forth in the preamble to this Agreement or such other address as such Party may designate in writing in accordance with this Section.

## 24. ENTIRE AGREEMENT; AMENDMENT

24.1 This Agreement, together with all Statements of Work executed hereunder, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior or contemporaneous agreements, proposals, or representations, whether written or oral, relating to such subject matter. This Agreement may be amended only by a written instrument signed by an authorized representative of each Party.

24.2 **Order of Precedence.** In the event of any conflict or inconsistency among the terms of this Agreement and a Statement of Work, the following order of precedence shall apply, from highest to lowest: (a) the applicable Statement of Work, solely with respect to the specific scope, fees, and timeline set forth therein; and (b) this Agreement.

## 25. SURVIVAL

25.1 Sections 5 (Indemnification), 6 (Limitation of Liability), 7 (Intellectual Property), 8 (Confidentiality), 11 (Restrictive Covenants and Commercial Terms), 13.2 (Warranty Disclaimer), 17 (Non-Solicitation of Employees), and 22 (Governing Law and Dispute Resolution), together with any other provision that by its nature should survive, shall survive the termination or expiration of this Agreement.

## 26. MISCELLANEOUS

26.1 **Independent Contractors.** The Parties are independent contractors, and nothing in this Agreement shall be construed to create a partnership, joint venture, agency, or employment relationship between the Parties.

26.2 **Severability.** If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect, and the invalid or unenforceable provision shall be modified to the minimum extent necessary to make it enforceable while preserving its original intent.

26.3 **No Waiver.** The failure of either Party to enforce any provision of this Agreement shall not be construed as a waiver of such provision or of the right to enforce it at a later time.

26.4 **Headings; Interpretation.** Section headings are for convenience of reference only and shall not affect the interpretation of this Agreement. The word “including” shall be deemed to mean “including without limitation.”

26.5 **Counterparts.** This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one instrument. Signatures transmitted electronically shall be deemed original signatures for all purposes.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

**NIMBUSWORKS INC.**

By: ________________________________

Name: Priya Nakamura

Title: Chief Operating Officer

**MERIDIAN CONSULTING GROUP LLC**

By: ________________________________

Name: Devin Okafor

Title: Managing Partner